

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jesse Leff	Team: Team # 7	CCRB Case #: 200101057	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/12/2001 7:45 PM	Location of Incident: 73rd Street & 25th Avenue	Precinct: 115	18 Mo. SOL 8/12/2002	EO SOL 8/12/2002	
Date/Time CV Reported Wed, 02/14/2001 6:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/14/2001 8:16 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Willis Cheatham	02219	888545	ND Q/NI
2. SGT Michael Barreto	00089	901152	115 PCT
3. DT3 Kevin Madden	07366	893308	ND Q/NI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Christophe Conversano	07634	905999	Q/S-ND
2. DT3 Keith Dietrich	05779	898161	ND Q/NI
3. SGT Wayne Rogers	02740	882845	ND Q/NI

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Kevin Madden	Abuse: Det. Kevin Madden searched a car in which § 87(2)(b) was an occupant.	
B.DT3 Willis Cheatham	Discourtesy: Det. Willis Cheatham spoke obscenely to § 87(2)(b)	
C.DT3 Willis Cheatham	Abuse: Det. Willis Cheatham issued a summons to § 87(2)(b)	
D.DT3 Willis Cheatham	Force: Det. Willis Cheatham used physical force against § 87(2)(b)	
E.DT3 Willis Cheatham	Abuse: Det. Willis Cheatham threatened § 87(2)(b) with the use of force.	
F.SGT Michael Barreto	Abuse: Sgt. Michael Barreto threatened § 87(2)(b)	

Synopsis

§ 87(2)(b) alleged that while parked near the intersection of 73rd Street and 25th Avenue with his girlfriend, § 87(2)(b) on February 12, 2001 at approximately 7:45 p.m., Det. Kevin Madden, Det. Willis Cheatham and Det. Christopher Conversano, approached his vehicle. The detectives indicated that § 87(2)(b) was parked in an area where individuals often come to do drugs, § 87(2)(g) Det. Madden and Det. Cheatham also indicated that they saw § 87(2)(b) holding an item they believed to be a marijuana cigarette. Det. Madden approached the driver's side window and looked in using a flashlight. § 87(2)(g)

After a brief conversation between Det. Madden and § 87(2)(b), § 87(2)(b) opened his door and Det. Madden reached into the vehicle and grabbed a piece of wood from the driver's side floor. § 87(2)(g)

While speaking with the detectives near his car, § 87(2)(b) alleged that Det. Cheatham referred to him as a "motherfucker," causing an argument to ensue between § 87(2)(b) and Det. Cheatham. After § 87(2)(b) indicated that he wanted to file a complaint against Det. Cheatham, that he was going to write the detectives' license plate number down, and told Det. Cheatham to "shut the fuck up," Det. Cheatham pushed § 87(2)(b) against the hood of his car and arrested him for disorderly conduct. While driving to the 115 Precinct stationhouse, Det. Cheatham allegedly told § 87(2)(b) that he would "kick § 87(2)(b) s] ass" if he did not have a "badge."

§ 87(2)(g)

Finally, § 87(2)(b) alleged that while in the stationhouse, the then Sgt. Michael Barreto of the 115 Precinct (who is now a lieutenant at the 101 Precinct) told § 87(2)(b) that if he filed a complaint he would "go through the system." Lt. Barreto indicated that he told § 87(2)(b) he could be put "through the system;" however, Lt. Barreto said that this would happen if § 87(2)(b) had an outstanding warrant or no identification. § 87(2)(g)

§ 87(2)(g)

Summary of Complaint

On February 14, 2001, § 87(2)(b) filed a civilian complaint at the 115 Precinct stationhouse (see encl. 7a-d). § 87(2)(b) alleged that while parked with a friend near the intersection of 73rd Street and 25th Avenue in Queens, three detectives approached his vehicle and used flashlights to look into it. "After the check and questioning was done, Det. Willis Cheatham said, 'No need to go back and forth with

this motherfucker, let's go.” § 87(2)(b) started to argue with Det. Cheatham until “[Det. Cheatham] choked § 87(2)(b) with both hands and held § 87(2)(b) on the hood of § 87(2)(b) s car. § 87(2)(b) wrote that Det. Cheatham “verbally abused” and “pushed/pulled” him “several” times on the way to the “precinct.” Once in the stationhouse, Sgt. Michael Barreto told § 87(2)(b) that if he “filed a complaint, § 87(2)(b) would go through the system.”

On March 12, 2001, § 87(2)(b) appeared at the CCRB (see encl. 10a-g). § 87(2)(b) s § 87(2)(g)

On February 12, 2001 at approximately 7:45 p.m., § 87(2)(b) parked his father's car on the corner of 25th Avenue and 73rd Street. § 87(2)(b) s girlfriend, § 87(2)(b) was seated in the front passenger seat.

Approximately 20 seconds after § 87(2)(b) parked, an unmarked minivan, stopped in a double-parked position next to his vehicle. Three individuals exited the van and approached § 87(2)(b) s vehicle. An officer later identified as Det. Cheatham went to the rear, driver's side window, an officer, later identified as Det. Kevin Madden approached the driver's seat, and an officer later identified as Det. Chris Conversano approached the front passenger's seat. The detectives had flashlights.

§ 87(2)(b) asked the officers what they were doing and Det. Madden informed him that he was in a “high drug area.” § 87(2)(b) opened his door to exit, at which point, Det. Madden reached in his vehicle and grabbed a toothpick that was on the driver's side floor. § 87(2)(b) said, “You can't put your hand in my car,” whereupon Det. Madden stated he could if “something [was] visible.” The detectives looked a short period longer until § 87(2)(b) asked if anything was visible. Det. Madden replied no and § 87(2)(b) added, “Well I guess you guys could be along your way.” The officers turned and to walk towards the van. Det. Cheatham, the first officer to reach the van then said, “Don't go back and forth with this motherfucker, let's go.”

At this point, § 87(2)(b) exited his vehicle and argued briefly with Det. Cheatham. § 87(2)(b) then approached Det. Conversano and asked what he needed to do to complain and for Det. Cheatham's name. Det. Conversano did not respond. After protesting he had just come from work, he had not done anything, and stating they had no right to swear at him, § 87(2)(b) said that he was going to write down the RMP's license plate number.

While walking back towards his car § 87(2)(b) and Det. Cheatham continued to argue with both parties using profanity. Det. Cheatham eventually said, “One more thing and I'm taking you in,” to which, § 87(2)(b) said, “Shut the fuck up.” At this point, Det. Cheatham, with two hands, grabbed § 87(2)(b) by the right side of his neck and “slammed” § 87(2)(b) into the hood of his car. The left side of § 87(2)(b) s body, from above the waste, struck the hood of his vehicle. Det. Cheatham held § 87(2)(b) by the neck so that § 87(2)(b) was facing the windshield. At this point, the other two officers grabbed Det. Cheatham by the shoulder, indicating for him to relax. Det. Cheatham said, “No, I'm taking this motherfucker in, I'm taking this motherfucker in.” Det. Cheatham held § 87(2)(b) for approximately 30 seconds.

When Det. Cheatham released § 87(2)(b) he retrieved his handcuffs, placed them on § 87(2)(b) and walked him to the RMP. Upon entering the rear of the RMP, Det. Cheatham grabbed the back of § 87(2)(b) s gray jacket, pulling him towards the door and then pushing him towards the last row of seats in the van. § 87(2)(b) tripped from the force of the push with his left leg hitting the floor of the van. Det. Cheatham grabbed a hold of § 87(2)(b) picked him up and placed him in the seat. § 87(2)(b) yelled through the open side door of the van for § 87(2)(b) to call his father.

No one was on the street during the incident.

Det. Conversano drove the van directly to the 115 Precinct. On the way to the stationhouse, § 87(2)(b) told Det. Cheatham, “You guys should be looking for criminals. You're wasting your time doing this to me.” Det. Cheatham told § 87(2)(b) that if he did not have his shield on, he would “kick § 87(2)(b) s] ass.”

Det. Conversano parked in a parking lot with other police vehicles. The detectives exited the vehicle and Det. Cheatham reached in and grabbed § 87(2)(b) s tie and pulled on it between 45 seconds and one minute. § 87(2)(b) remained seated and told Detective Cheatham, “Get off my tie” several times. Det. Madden grabbed Det. Cheatham and directed him by saying, “Get off.

As § 87(2)(b) was walking towards the stationhouse, Det. Cheatham grabbed § 87(2)(b) by the chain of the handcuff and pushed him back towards the van. § 87(2)(b) first said that his body did not hit the van; however, he later said that the left side of his body hit the van.

§ 87(2)(b) said that his jacket was off his arm at this point and he asked the officers to pull it back up.

After three to four minutes, two additional officers, later identified as Det. Keith Dietrich and Sgt. Wayne Rogers, arrived in a green Ford explorer. All five officers accompanied § 87(2)(b) into the stationhouse.

Once inside the stationhouse Det. Cheatham walked § 87(2)(b) in front of the front desk, said, "Stay right here," and then pushed him to his right. § 87(2)(b)'s back and forearms struck a door, causing it to open. Det. Madden told § 87(2)(b) to stay where he was and he stood next to the door for a few minutes.

While § 87(2)(b) waited, he saw an officer, who he identified as Sgt. Barreto. § 87(2)(b) said he knew the sergeant's brother and he informed the sergeant that he knew him. Sgt. Barreto approached him and § 87(2)(b) told the sergeant that he had not done anything. The sergeant replied that officers said § 87(2)(b) had "cursed first." § 87(2)(b) said that he did not curse first, and that he just wanted to know how to file a complaint once he was finished being detained. Sergeant Barreto replied, "If you complain, we're going to have to run you through the system."

§ 87(2)(b) was then led into what appeared to be a conference room. Detective Cheatham took § 87(2)(b)'s wallet. § 87(2)(b) asked if the summons would ruin his record, whereupon one of the detectives asked him if he would take a driving without insurance summons, which the detective said could easily be eradicated from his record. § 87(2)(b) refused, stating that he was going to file a complaint and that the officers should follow through to the furthest extent.

Once § 87(2)(b) was uncuffed, he went to the front desk, and asked to file a civilian complaint with an unidentified detective. § 87(2)(b)'s father was present at this time. Sgt. Barreto gave § 87(2)(b) a complaint form, told him to fill it out, and then bring it in.

§ 87(2)(b) was in the stationhouse for approximately 45 minutes. § 87(2)(b) was issued a summons for disorderly conduct.

§ 87(2)(b) went to court on § 87(2)(b) and said that he is supposed to re-appear on § 87(2)(b).

It should be noted that § 87(2)(b) appeared at the CCRB with a written statement that he indicated he had composed the night of the incident (see encl. 9a-d). § 87(2)(b) read this statement before being questioned by the undersigned investigator. § 87(2)(g)

Results of Investigation

Civilian Witness Statements

On March 12, 2001, § 87(2)(b) was interviewed at the CCRB (see encl. 11a-f). § 87(2)(g)

As § 87(2)(b) was being questioned by one of the white detectives, § 87(2)(b) heard Det. Cheatham say, "There's no need to go back and forth with this motherfucker."

At this point, § 87(2)(b) exited the vehicle and asked for Det. Cheatham's badge number. § 87(2)(b) also exited the vehicle and the older white detective, later identified as Det. Madden, asked her to calm § 87(2)(b) down. At this point, Det. Cheatham grabbed § 87(2)(b) on his throat with his right hand and held him against the hood of § 87(2)(b)'s car. § 87(2)(b)'s back was on the hood and he was facing in the air. § 87(2)(b) yelled at Det. Madden that they should not be treating § 87(2)(b) this way, that the officers did not find anything in the car and that § 87(2)(b) was only asking for the officer's identification. Det. Madden told her that § 87(2)(b) was being arrested for "[D]isorderly Conduct."

¹ As of June 5, 2001, § 87(2)(b) is scheduled to appear in Queens County Criminal Court on § 87(2)(b) concerning this summons.

After a short time, Det. Cheatham turned § 87(2)(b) around, handcuffed him, and led him to the van. § 87(2)(b) did not see anything inside the van as the windows were tinted. § 87(2)(b) did not see anyone on the street. § 87(2)(b) went to § 87(2)(b)'s house and informed his father, § 87(2)(b) of what had happened. Both went to the 115 Precinct stationhouse. § 87(2)(b) spoke with a plainclothes officer who had not been on the scene.

On March 30, 2001, § 87(2)(b) was interviewed at the CCRB (see encl. 12a-c). § 87(2)(b) stated that his son's girlfriend arrived at his apartment and informed him that his son had been arrested. § 87(2)(b) and § 87(2)(b) went to the 115 Precinct stationhouse. There, § 87(2)(b) spoke with a plainclothes sergeant who informed him that his son was arrested because he "had been making noise and running around in the street," and that his behavior was "insulting to the police." § 87(2)(b) was released with a disorderly conduct summons.

On March 29, 2001, the undersigned investigator conducted a canvass in the vicinity of 73rd Street and 25th Avenue and photographed the intersection. § 87(2)(b) was parked near (see encl. 20a-c). An individual by the name of § 87(2)(b), stated that he had no recollection of the incident. However, § 87(2)(b) indicated that he has made numerous 911 calls concerning kids who park along 25th Avenue to "make out" or "do drugs." Canvass letters were left at neighboring residences along 73rd Street; however, no one has contacted the investigator.

Identification of Subject Officers

At the time of his CCRB interview, § 87(2)(b) provided the summons Det. Cheatham issued him on February 12, 2001 for disorderly conduct. Det. Cheatham was the only black officer involved in the incident. The two white detectives, Det. Madden and Det. Conversano were identified through the tactical plan for February 12, 2001 (see encl. 19b). These two were distinguished by the precise physical descriptions provided by the civilians as well as consistencies among the civilian and officer statements concerning the positioning and actions of Det. Madden and Det. Conversano.

Police Officer Statements

Det. Cheatham's May 7, 2001 CCRB Statement (see encl. 13a-e)

On February 12, 2001, Det. Cheatham worked a plainclothes buy and bust assignment with Det. Madden and Det. Conversano. The detectives were assigned to § 87(2)(e), § 87(2)(b), which is an unmarked minivan. Additional members of the field team were Sgt. Rogers and Det. Dietrich, who were assigned to a different RMP.

At approximately 7:45 p.m., Det. Cheatham, seated in the middle row of seats in the RMP, with Det. Conversano operating the vehicle and Detective Madden in the front passenger seat, passed through the intersection of 73rd Street and 25th Avenue. While passing the intersection, Det. Cheatham believed he saw a male, later identified as § 87(2)(b) seated in the driver's seat of a parked car rolling a marijuana cigarette.

Det. Conversano double-parked the RMP alongside § 87(2)(b)'s car and the detectives exited. Detective Cheatham said that it was dark out; however, he could not recall if he and his partners exited with their flashlights. Det. Madden went to the driver's side window, Det. Cheatham walked around the rear of § 87(2)(b)'s car to the passenger's side.

Det. Madden spoke with § 87(2)(b) however, he at no point reached inside § 87(2)(b)'s car.

Once Det. Madden concluded that there was no marijuana cigarette, Det. Cheatham walked to the RMP. At this point, § 87(2)(b) exited his vehicle, initially arguing with Det. Madden, asking why he was stopped and then alleged that Det. Cheatham called had called him a "motherfucker" and that Det. Cheatham "cursed first," which Det. Cheatham denied at the time of his interview. Det. Cheatham did not recall § 87(2)(b) asking for his name and shield number.

One to two cars slowed down, but did not stop, and there was no pedestrian traffic. When asked to describe in what manner § 87(2)(b)'s actions constituted "Disorderly Conduct," Detective Cheatham indicated § 87(2)(b) violated subsections 1: "He engages in a fighting or violent, tumultuous or threatening behavior;" and 3: "In a public place, he uses abusive or obscene language, or makes an obscene gesture" (see encl. 3a). At this point in the interview, Det. Cheatham indicated he felt threatened by § 87(2)(b) because he "walked within inches" of Det. Cheatham's face three or four times.

Detective Cheatham grabbed § 87(2)(b) by his arms and placed his hands behind his back. Detective Cheatham stated that § 87(2)(b) resisted; however, he could only elaborate by stating, "he was trying to get away." Det. Cheatham pushed § 87(2)(b) against the front of § 87(2)(b)'s car, but did not position him so his torso was on the vehicle. Without the assistance of his partners, Det. Cheatham handcuffed § 87(2)(b) brought and placed him in the RMP without conducting a frisk. § 87(2)(b) was placed in the rear row of seats and was not pushed and did not fall while in the RMP.

Sgt. Rogers and Det. Dietrich were not in the vicinity during the arrest and Det. Cheatham did not know where they were at this point.

Det. Cheatham indicated that on the way to the 115 Precinct stationhouse, § 87(2)(b) continued to allege that Det. Cheatham cursed first. Det. Cheatham denied that he ever stated he would kick § 87(2)(b)'s "ass if he did not have a badge."

When they arrived at the stationhouse, Det. Cheatham grabbed § 87(2)(b) by each of his arms to pull him out of the vehicle. § 87(2)(b)'s leg was stuck, so Det. Cheatham had some problem bringing § 87(2)(b) out of the van. When asked if Det. Cheatham ever grabbed § 87(2)(b) by his tie, Det. Cheatham waited approximately six seconds and then responded, "No I didn't." Det. Cheatham denied having said, "I'm taking this motherfucker in."

Once out of the van, Det. Cheatham did not push § 87(2)(b) into the van or any other vehicle in the parking lot. Det. Cheatham brought § 87(2)(b) to the front desk. Det. Cheatham told the desk sergeant, who believed was Sgt. Barreto, that he had a prisoner. § 87(2)(b) remained there for approximately one to two minutes before being brought into another room.

Det. Madden's May 9, 2001 CCRB Statement and Det. Conversano's May 10, 2001 CCRB Statement (see encls. 15a-c & 16a-d)

§ 87(2)(g)
§ 87(2)(b). Det. Conversano and Det. Madden added that the rear windows of their RMP were tinted, and Det. Conversano indicated that the tints are dark to the point where one cannot see in from the outside.

Det. Madden and Det. Conversano indicated that while passing through the intersection of 73rd Street, Det. Madden told for Det. Conversano to stop the RMP, because he saw an individual holding an item in his hand, which Det. Madden believed to be a marijuana cigarette. Det. Conversano stopped the RMP in a double-parked position in front of the vehicle where the individual, later identified as § 87(2)(b) was seated.

Det. Madden approached the driver's side door and Det. Cheatham went to the rear driver's side window. Det. Madden indicated that § 87(2)(b) opened his door upon his approach. Both officers described Det. Madden as speaking briefly with § 87(2)(b) and Det. Madden added that he saw what initially appeared to be a marijuana cigarette on the driver's side floor of the vehicle. Det. Madden reached into the floor of the driver's side and picked up what turned out to be a piece of wood. Det. Conversano believed Det. Madden picked up a toothpick.

At this point, § 87(2)(b) exited his vehicle and Det. Conversano indicated that § 87(2)(b) yelled, "You can't search me, I work two jobs, I'm a good person. Why are you guys disrespecting me?" Det. Madden described § 87(2)(b) as yelling, "This is bullshit, what the fuck is going on, I work two jobs, I don't need this shit." Det. Conversano believed that § 87(2)(b) was yelling at both Det. Madden and Det. Cheatham at this time; however, both detectives indicated that § 87(2)(b) directed his yelling at Det. Cheatham when Det. Cheatham said, "Forget about it/this guy." Neither detective heard § 87(2)(b) allege Det. Cheatham called him a "motherfucker" and there was no discussion concerning who cursed first.

Det. Cheatham told § 87(2)(b) to calm down two to three times and indicated that he could be arrested for disorderly conduct. Det. Madden added that § 87(2)(b) was walking around in the street; however, both detectives indicated that the distance between § 87(2)(b) and Det. Cheatham remained

between two and five feet. Det. Conversano specified that this distance was not breached until Det. Cheatham moved to apprehend § 87(2)(b).

Det. Cheatham grabbed § 87(2)(b) by the arms and pushed him against his car's front quarter panel. Det. Conversano indicated that § 87(2)(b)'s torso was pushed onto the hood of the vehicle and that he brought his hands in front of his chest to avoid being handcuffed. Det. Madden indicated that § 87(2)(b) was not pushed onto the hood; however, he was positioned so that he was facing the windshield of his vehicle and that he was handcuffed in a couple of seconds. Neither detective assisted Det. Cheatham. Det. Conversano believed Det. Cheatham frisked § 87(2)(b).

Det. Madden said that a "few" vehicles passed by the scene and Det. Conversano indicated that one to two vehicles passed by. There was no pedestrian traffic.

Det. Cheatham placed § 87(2)(b) in the van. Neither detective saw Det. Cheatham push § 87(2)(b). Det. Madden denied § 87(2)(b) fell while inside the van; however, Det. Conversano indicated that he did not know.

On the way to the 115 Precinct stationhouse, Det. Conversano indicated that § 87(2)(b) continued to say that he had two jobs and that Det. Cheatham did not threaten to kick § 87(2)(b)'s "ass."

When the group arrived at the stationhouse, Det. Conversano said that he did not pay attention to how § 87(2)(b) was brought out of the van. Det. Madden initially stated that he was walking into the stationhouse while § 87(2)(b) was being brought out; however, he later indicated that he was standing by the van, but could not specify the method in which Det. Cheatham removed § 87(2)(b) or how long it took to remove him. Both detectives denied having seen Det. Cheatham pull on § 87(2)(b)'s tie while removing him, and neither detective saw Det. Cheatham push § 87(2)(b) into any car outside the stationhouse or any door inside the stationhouse.

The detectives believed that Sgt. Rogers and Det. Dietrich were inside the stationhouse upon their entry. Det. Madden indicated that § 87(2)(b) was brought to the front desk and that Det. Cheatham stood § 87(2)(b) against a wall. The desk sergeant spoke briefly with Sergeant Rogers and § 87(2)(b) was brought into the muster room. Both detectives remained at a table near the front desk, while § 87(2)(b) was in the muster room. Det. Conversano believed that Sgt. Rogers was in the muster room and Det. Madden added that the desk sergeant was in the muster room as well.

§ 87(2)(b)'s father arrived, but neither detective spoke with him.

Lt. Barreto's May 9, 2001 CCRB interview (see encl. 14a-e)

On February 12, 2001, Sgt. Barreto, who is currently a lieutenant in the 101 Precinct, was the desk sergeant in the 115 Precinct stationhouse during the 3rd Tour. At approximately 7:45 p.m., a sergeant, who was later identified as Sgt. Rogers, and three to four detectives in a narcotics unit entered the stationhouse with a male prisoner, later identified as § 87(2)(b). The prisoner was "screaming" that he had not done anything wrong. Once in front of the desk, § 87(2)(b) moved around and a white detective held him against a wall. § 87(2)(b) started to scream, "I know you, I know you" to Lt. Barreto. Lt. Barreto did not know § 87(2)(b) however, Lt. Barreto believed that § 87(2)(b) said that he thought the lieutenant was his brother. Lt. Barreto asked the narcotics officers if he could speak with § 87(2)(b) and one of the detectives escorted § 87(2)(b) into the muster room and Lt. Barreto followed.

§ 87(2)(b) told the lieutenant that he was seated in his car with his girlfriend and that the police had stopped him. He asked the officers, "Why the fuck are you stopping me for. I'm not doing fucking anything wrong." § 87(2)(b) added that he had gotten into a fight with the black detective; however, Lt. Barreto could not recall if § 87(2)(b) complained of an officer swearing at him.

§ 87(2)(b) asked the lieutenant what was going to happen and Lt. Barreto informed him that he was arrested for disorderly conduct and that if he did not have identification or if he had an outstanding warrant, he would go "through the system." § 87(2)(b) provided his driver's license. Lt. Barreto believed one of the white narcotics detectives was present at this point.

Later, § 87(2)(b) told Lt. Barreto that he wanted to file a CCRB complaint. Lt. Barreto informed him that once he received his summons, he would be given the paperwork and explanations on how to fill it out in front of the desk.

§ 87(2)(b)'s father and girlfriend showed up fifteen to twenty minutes after § 87(2)(b) arrived. Sgt. Rogers spoke with the father outside of the stationhouse.

When § 87(2)(b) was released, Lt. Barreto gave him the CCRB complaint and § 87(2)(b) indicated that he did not want to fill it out at that time.

Sgt. Rogers' May 10, 2001 CCRB Statement and Det. Dietrich's May 21, 2001 CCRB Statement (see encls. 17a-b & 18a-b)

On February 12, 2001, Sgt. Rogers and Det. Dietrich were assigned to the same vehicle for a plain clothes buy and bust operation. Shortly before 7:45 p.m., Sgt. Rogers received a call that Det. Cheatham had made an arrest for disorderly conduct. Neither Det. Dietrich nor Sgt. Rogers could recall where they were when they received the call; however, they both indicated that they were not present during Det. Cheatham's arrest.

Upon arriving at the 115 Precinct stationhouse, Det. Dietrich said he met up with the other members of his field team in the stationhouse's rear parking lot. Det. Dietrich observed the prisoner, § 87(2)(b) standing outside the vehicle, stating, "this is fucking bullshit, I didn't do anything. I am gonna have your job." Det. Dietrich observed that § 87(2)(b)'s jacket had been pulled down. Det. Dietrich did not see § 87(2)(b) pushed against a vehicle outside the stationhouse.

Det. Dietrich indicated § 87(2)(b) was brought to the front desk and Sgt. Rogers made an entry into the command log. § 87(2)(b) was then brought to the muster room, where Sgt. Barreto told § 87(2)(b) if he had an outstanding warrant he would be put "through the system." Det. Dietrich questioned § 87(2)(b) about whether he had his insurance on him and told him that he could be issued a summons for driving without insurance.

Sgt. Rogers said when he arrived at the stationhouse, § 87(2)(b) was in the muster room. Sgt. Rogers entered the room, informed § 87(2)(b) that a warrant check was being done. Sgt. Rogers told § 87(2)(b) that if he had any outstanding warrants he would be "run through the system," but if he did not, he would only receive a summons.

Both officers indicated that § 87(2)(b)'s father arrived and Sgt. Rogers spoke with him in the front of the stationhouse. Sgt. Rogers added that the father indicated that his son's girlfriend said that both his son and Det. Cheatham were swearing at each other. The father also indicated that he might contact the mayor or broadcast something about this incident on his Pakistani television station.

§ 87(2)(b) was released to his father with a disorderly conduct summons.

Police Department Document

There are two entries in the February 12, 2001 for the 115 Precinct command log concerning this incident (see encl. 19g-h). The first entry, made at 7:45 p.m., which Lt. Barreto stated was filled out by Sgt. Rogers, indicates § 87(2)(b) was brought into the stationhouse for disorderly conduct and that his condition was normal. § 87(2)(b) was issued summons number 407492154 at 8:35 p.m. At 8:35 p.m. an entry concerning a request for CCRB Report was entered in the command log, and it indicates that § 87(2)(b) refused to prepare report and he took it with him. The February 12, 2001 tactical plan for the Queens North Narcotics Initiative indicates Det. Cheatham, Det. Conversano and Det. Madden were assigned to RMP 802, while Det. Dietrich and Sgt. Rogers were assigned to RMP 906 (see encl. 19b).

Conclusions and Recommendations

Certain facts of the incident are undisputed. § 87(2)(b) and § 87(2)(b) were seated in a parked vehicle on the North side of 25th Avenue (see photograph A on encl. 20b) near the avenue's intersection with 73rd Street, when Det. Cheatham and his partners approached the vehicle and conducted a visual search outside the car. § 87(2)(b) voluntarily opened his door and Det. Madden reached into the vehicle picking up a piece of wood on the driver's side floor. § 87(2)(b) protested the detectives' intrusiveness and when Det. Cheatham indicated that the detectives should leave, § 87(2)(b) focussed his protests at Det. Cheatham. Soon after, Det. Cheatham pushed § 87(2)(b) against the front of § 87(2)(b)'s vehicle, handcuffed him and placed him into the RMP.

At the 115 Precinct stationhouse, Lt. Barreto told § 87(2)(b) that he could be put "through the system."

A credibility analysis of § 87(2)(b)

§ 87(2)(g)

A credibility analysis of Det. Cheatham

§ 87(2)(g)

A) Abuse of Authority: Det. Kevin Madden searched a vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

§ 87(2)(b). *New York Search and Seizure Law* reads: “[an] officer’s request for information from the occupant of a stationary or parked car is a minimal intrusion on the individual’s right of privacy... the officer need only possess an articulable reason to make an inquiry of the driver; the reason for the approach need not be based on any indicia of criminality” (see encl. 1a-b).³

The detectives and an independent witness asserted that the incident’s location is often populated with people doing drugs. *New York Search and Seizure Law* highlights uncertainty among the New York Courts on whether the criminal nature of an area and curiosity pertaining to the occupants of a car in the area justify an officer’s approach (see encl. 1c).⁴ § 87(2)(g)

² As of June 13, 2001, no one by the name of ‘§ 87(2)(b)’ has filed a claim against New York City for an incident that occurred on February 12, 2001. See *PD v. Queally and Nicastro*. OATH Index Nos. 1787-88/97 (Jan. 14, 1998); pg. 7

³ See pages 350-351 in *New York Search and Seizure Law* by Barry Kamin. Gould Publications, New York (2001).

⁴ See page 352 in *New York Search and Seizure Law* by Barry Kamin. Gould Publications, New York (2001).

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

In *PD v. Hoffman*, ALJ John Spooner asserted that the officers have to have acted “without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper” for their behavior to constitute misconduct (see encl. 2b).⁵ Judge Spooner continued by citing *PD v. Wang*: “the wisdom of this policy is apparent, for to penalize officers for taking vigorous police actions in situations where close legal choices must be made would be to paralyze a significant proportion of law enforcement efforts” (see encl. 2c).

§ 87(2)(g) [REDACTED]

In that the detectives’ approach is justified, *New York Search and Seizure Law* provides that the use of flashlights in conducting a visual search of the car is also justified (see encl. 1d-e).⁶

§ 87(2)(g) [REDACTED]

New York Search and Seizure Law asserts that items may be seized if in plain view; however, it “must be immediately apparent to the officer that the items are evidence of a crime, contraband, or otherwise subject to seizure” (see encl. 1d).⁷

§ 87(2)(g) [REDACTED]

B) Discourtesy: Det. Willis Cheatham spoke obscenely to § 87(2)(b) PG 203-9

⁵ See *PD v. Hoffman*, OATH Index Nos. 1005-06/98 (Apr. 13, 1998).
⁶ See page 427 in *New York Search and Seizure Law* by Barry Kamin. Gould Publications, New York (2001).
⁷ See page 426 in *New York Search and Seizure Law* by Barry Kamin. Gould Publications, New York (2001).

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C) Abuse of Authority: Det. Willis Cheatham issued § 87(2)(b) a summons. PG 208-01

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As indicated in Det. Cheatham's interview summary, Det. Cheatham felt § 87(2)(b) violated subsections 1 and 3 three of New York State Penal Code 240.20 (NYS PC 240.20). § 87(2)(g)

All three detectives described § 87(2)(b) as yelling and using profanity once he exited his vehicle, which § 87(2)(b) and § 87(2)(b) openly admitted. Det. Cheatham and Det. Conversano added that one to two cars slowed down while passing them; however, none of the detectives saw a car stop or an individual exit a car that had slowed down. Furthermore, all of the detectives indicated that there was no pedestrian traffic on the street at the time of the incident, § 87(2)(g)

Subsection 3 of NYS PC 240.20 reads: "In a public place, he uses abusive or obscene language or makes an obscene gesture," which appears to include § 87(2)(b)'s actions. However, *People v. Tichenor*, 89 N.Y.2d 769, 775, 658 N.Y.S.2d 233, 236 (1997) established that "the disorderly conduct statute... does not circumscribe pure speech directed at an individual... Rather, it is directed at words or utterances coupled with an intent to create a risk of public disorder" (see encl. 4e).⁸ § 87(2)(g)

⁸ This case and explanation was cited by OATH Judge Faye Lewis in *PD v. Queally & Nicastro*. Index Nos. 1787-88/97 (Jan. 14, 1998); pg. 9.

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Subsection 1 reads: “He engages in a fighting or violent, tumultuous or threatening behavior.” § 87(2)(g)

D) Force: Det. Cheatham used physical force against § 87(2)(b) 203-11

In all of his accounts, § 87(2)(b) alleged that Det. Cheatham grabbed him with both hands. In § 87(2)(b)'s two written statements, he wrote that Det. Cheatham grabbed him and “choked” him. At the time of his CCRB interview, § 87(2)(b) made no mention of being choked; however, he continued

to assert that Det. Cheatham grabbed and held him by his neck. After direct questioning, § 87(2)(b) specified that Det. Cheatham placed pressure on the right side of his neck and not his throat. § 87(2)(g)

During his CCRB interview, § 87(2)(b) added that once Det. Cheatham grabbed him by the neck, Det. Cheatham positioned him so the left side of his body was on the hood of the car and he was facing his windshield.

§ 87(2)(g) described Det. Cheatham as grabbing § 87(2)(b)'s throat with his right hand. § 87(2)(g) described § 87(2)(b)'s back being pressed against the hood and § 87(2)(b) looking straight up into the air.

Both § 87(2)(b) and § 87(2)(b) indicated that Det. Cheatham maintained this grip for a short period before handcuffing § 87(2)(b).

The detectives described Det. Cheatham as grabbing § 87(2)(b) by the arms and pressing him against the front quarter panel of § 87(2)(b)'s car. Det. Madden and Det. Cheatham asserted that § 87(2)(b)'s torso was not pushed onto the hood of his vehicle, yet Det. Conversano stated that § 87(2)(b)'s torso was on the hood. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) *PD v. Morales*, OATH Index No. 321/92 has established that the “legal impropriety of an arrest does not automatically render it in bad faith,” or the force used to effectuate the arrest “disciplinable” (see encl. 4c).⁹ § 87(2)(g)

§ 87(2)(b) alleged that he was pushed once inside the RMP, that Det. Cheatham pulled on his tie get him out of the RMP and that Det. Cheatham pushed him into the RMP in the parking lot of the 115 Precinct and into a wall/door inside the stationhouse. § 87(2)(g)

§ 87(2)(b) specified that the Det. Cheatham pulled on his tie in his independently written account and during his CCRB interview. § 87(2)(g)

Det. Madden could not recall how Det. Cheatham removed § 87(2)(b) from the RMP or how long it took to do so.

§ 87(2)(g)

⁹ This case and explanation was cited by OATH Judge Faye Lewis in *PD v. Queally & Nicastro*. Index Nos. 1787-88/97 (Jan. 14, 1998); pg. 6.

§ 87(2)(b) indicated that as a result of being pushed and pulled by Det. Cheatham, his coat had come off of his shoulders and rested on his arms. At the time of his CCRB interview, Det. Dietrich volunteered that § 87(2)(b)'s coat was pulled down and that he moved to fix it in the parking lot of the stationhouse.

§ 87(2)(g)

E) Abuse of Authority: Det. Cheatham threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that while inside the RMP, Det. Cheatham told him that if he was not wearing his "badge," he would "kick § 87(2)(b)'s] ass." § 87(2)(g)

Both Det. Conversano and Det. Cheatham denied Det. Cheatham had said this, and Det. Madden offered no description of the ride to the stationhouse. Det. Conversano said that while driving to the stationhouse, § 87(2)(b) continued to "rant and rave," and § 87(2)(b) specified that he told Det. Cheatham he was "wasting his time" and should be "looking for criminals," not apprehending him. While Det. Cheatham said there was "probably" some conversation between he and § 87(2)(b) he could not recall the substance of it.

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F) Abuse of Authority: Lt. Barreto threatened § 87(2)(b)

§ 87(2)(b) alleged that while in the 115 Precinct stationhouse, Lt. Barreto told him that if he made a complaint he would go "through the system." Upon questioning, Lt. Barreto informed the CCRB that he told § 87(2)(b) that if he had an outstanding warrant or no identification he would go "through the system." Lt. Barreto added that § 87(2)(b) then informed the lieutenant that he wanted to make a complaint to which Lt. Barreto informed § 87(2)(b) that that would be handled upon his release. Lt. Barreto added that once § 87(2)(b) said that he wanted to make a complaint, Lt. Barreto made no other mention that § 87(2)(b) could be arrested.

While most of the other officers involved did not overhear any conversation between Lt. Barreto and § 87(2)(b) Det. Dietrich reiterated that Lt. Barreto explained to § 87(2)(b) that he could be arrested for an outstanding warrant and not having ID. § 87(2)(g)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: